

1.

CASE #	CASE NAME	HEARING NAME
CVME2402754	CITIBANK N.A. VS MARTINEZ	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to Dario Martinez entered on January 23, 2025 is set aside and vacated, and judgment entered in favor of Plaintiff CITIBANK, N.A., and against Defendant Dario Martinez, in the principal sum of \$1,350.00, and court costs in the sum of \$643.61 for a total judgment of \$1,993.61. Court to sign the proposed order and judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVME2513284	HIGHTOWER VS CONCENTRA HEALTH SERVICES INC	DEMURRER

Tentative Ruling:

Moving Party: Defendants Concentra Health services, Inc., Flene Folsom, and Dylan Herrera

Responding Party: Plaintiff James Hightower (in pro per)

Motions Filed: 3/20/2026

Opposition Filed: 4/9/2026

Reply Filed: No reply on eCourt as of 6/25/2026

A. General Demurrer – Merits

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)